



Costs Decision

Site visit made on 7 July 2026

by Chris Mayes CMLI

an Inspector appointed by the Secretary of State

Decision date: 28 August 2026

Costs application in relation to Appeal Ref: 6009185

Childwall Golf Club, Holt Lane, Naylor/Wheat Hill Road, Netherley, Liverpool L27 2YB

- The application is made under the Town and Country Planning Act 1990, sections 78, 322 and Schedule 6, and the Local Government Act 1972, section 250(5).
 - The application is made by Jet Infrastructure for a full award of costs against Liverpool City Council.
 - The appeal was against the refusal of the Council to grant approval required under Article 3(1) and Schedule 2, Part 16, Class A of the Town and Country Planning (General Permitted Development) (England) Order 2015 (as amended) for 30m high lattice tower supporting 6no. VMO2 antennas, 15no. remote radio units (RRUs) and 2no. dishes, together with an operator equipment cabinet, a shared meter cabinet, and associated ancillary development including a fenced compound, foundations, and overhead cabling.
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Decision

1. The application for an award of costs is refused.

Reasons

2. Parties in planning appeals normally meet their own expenses. However, the Planning Practice Guidance (PPG) advises that costs may be awarded against a party who has behaved unreasonably and thereby caused the party applying for costs to incur unnecessary or wasted expense in the appeal process.
3. The provisions of the 2015 General Permitted Development Order (the GPDO) require the local planning authority to assess an application under Part 16 solely based on siting and appearance, taking account of any representations received. The principle of development is established by the GPDO. While policies relevant to siting and appearance may amount to material considerations, the proposal was not required to be determined against Green Belt policy generally.
4. The applicant contends that the Council acted unreasonably, both procedurally and in substantive terms, by relying upon Green Belt policy considerations and by extending its assessment into matters concerning network need and coverage. It also argues that the Council relied upon Ofcom coverage information obtained during the determination process without first providing an opportunity for comment.
5. As I found in the appeal decision, the proposal fell to be assessed solely on matters of siting and appearance. While aspects of the Council's reasoning referred to Green Belt policy considerations, read as a whole the Council's decision was directed principally towards the siting of the proposed mast and its effect on the character and appearance of the area. The applicant had already provided substantive submissions during the determination process explaining why Green Belt policy considerations were not determinative and referring to relevant appeal

decisions. While the Council did not ultimately accept that position, the evidence before me does not demonstrate that the applicant was required to undertake significant additional work at appeal stage in order to address the matter. Consequently, I am not persuaded that the Council's approach caused unnecessary or wasted expense.

6. The applicant also contends that the Council relied upon Ofcom coverage information obtained during determination without first providing an opportunity to comment upon it. I acknowledge that concern. However, network coverage and telecommunications need were not determinative issues in the prior approval application. Consequently, even if the Council's approach was procedurally imperfect, I am not persuaded that it required the applicant to incur unnecessary or wasted expense. The matters raised by the Ofcom information were not decisive to the outcome of the application and the appeal ultimately turned on issues of siting and appearance.
7. Similarly, while paragraph 123 of the 2024 Framework advised that local planning authorities should not question the need for an electronic communications system, I am not persuaded that the Council's references to network need and coverage caused the applicant to incur unnecessary or wasted expense. Even had those matters not been raised, the appeal would still have required consideration of the siting and appearance of the proposed development, which formed the substance of the Council's case.
8. The Council was entitled to reach its own judgement regarding the visual effects of the proposal, including its effect on the character and appearance of the area and the setting of the non-designated heritage asset. It was also entitled to consider alternative sites and existing infrastructure insofar as those matters related to siting. Although I ultimately reached different conclusions in the appeal decision, the evidence does not demonstrate unreasonable behaviour which caused the applicant to incur unnecessary or wasted expense.
9. Therefore, unreasonable behaviour resulting in unnecessary or wasted expense has not occurred and an award of costs is not warranted.

Chris Mayes

INSPECTOR